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[TENTATIVE] ORDER OVERRULING IN PART AND SUSTAINING IN PART DEFENDANTS' EITAN SHARAF and DEBORAH SHARAF, as Trustees of the SHARAF REVOCABLE FAMILY TRUST DATED MARCH 3, 2003; DEMURRER AND GRANTING IN PART AND DENYING IN PART MOTION TO STRIKE

I. INTRODUCTION

On August 20, 2025, Plaintiff Louis Matthew Kiss ("Plaintiff") filed this action against Defendants Albert Sharaf; Eitan Sharaf and Deborah Sharaf, as Trustees of the Sharaf Revocable Trust dated March 3, 2003 (the "Sharaf Trustees" or "Defendants"); A&B Partners; and Does 1 through 50, asserting causes of action for: (1) Negligence; (2) Premises Liability; (3) Breach of the Implied Warranty of Habitability; (4) Nuisance; (5) Breach of the Covenant of Quiet Enjoyment; and (6) Negligence Per Se.

On June 8, 2026, Defendants filed the instant demurrer and motion to strike Plaintiff's Complaint. On July 6, 2026, Plaintiff filed oppositions to the demurrer and motion to strike. On July 10, 2026, Defendants filed replies.

Request for judicial notice

Defendants request judicial notice of the Residential Lease Agreement attached as Exhibit 1 to the Request for Judicial Notice. The Court GRANTS the request pursuant to Evidence Code section 452, subdivision (h)

Meet and confer

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), the demurring party is required to meet and confer with the party who filed the pleading at least five days before the responsive pleading is due. This must occur in person, telephone or by video conference with the aim of resolving any objections raised in the demurrer. Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

Here, Defendants' counsel declares she sent Plaintiff's counsel a meet and confer letter regarding the instant demurrer and motion to strike, but Plaintiff's counsel did not respond. (Tatikian Decl., ¶¶ 4-5.) This does not satisfy the meet and confer requirements of Code of Civil Procedure sections 430.41 and 435.5. Nevertheless, the Court exercises its discretion to consider the demurrer and motion to strike on the merits.

II. LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

CCP section 430.10(f) provides that a pleading is uncertain if it is ambiguous and unintelligible. (See Code Civ. Proc., § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) "A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her." (Weil & Brown, Civil Procedure Before Trial (The Rutter Group) § 7:85 (emphasis in original).) "The objection of uncertainty does not go to the failure to allege sufficient facts." (Brea v. McGlashan (1934) 3 Cal.App.2d 454, 459.) "It goes to the doubt as to what the pleader means by the facts alleged." (Id.) "Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet." (People v. Lim (1941) 18 Cal.2d 872, 882.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Civ. Code §3294:

(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(c) As used in this section, the following definitions shall apply:

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

III. ANALYSIS

As a preliminary matter, the Court addresses Defendants' Request for Judicial Notice. Defendants contend the Lease Agreement establishes that A&B Partners, not the Sharaf Trustees, is Plaintiff's landlord and therefore defeats Plaintiff's claims against the Trustees. The Court disagrees.

Although the Court grants Defendants' Request for Judicial Notice of the Lease Agreement, the Lease establishes only that A&B Partners is the contracting party to the lease. It does not conclusively establish that the Sharaf Trustees did not own, manage, operate, maintain, supervise, or otherwise control the subject property. The Complaint expressly alleges that the Sharaf Trustees "owned, operated, maintained, supervised, managed, or otherwise controlled" the subject premises. (Complaint, ¶ 5.) While the Court may take judicial notice of the existence and contents of the Lease Agreement, it may not accept Defendants' disputed factual inference that the Trustees lacked ownership or control over the property solely because they were not signatories to the lease. Whether the Trustees exercised ownership or control over the subject property notwithstanding the Lease Agreement presents a factual issue that is not properly resolved on demurrer.

First and Second Causes of Action: Negligence and Premise Liability

The elements for negligence are: (1) a legal duty owed to the plaintiff to use due care; (2) breach of duty; (3) causation; and (4) damage to the plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

Premises liability shares its elements with negligence: duty, breach, causation, and damages. (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.) Premises liability is simply a species of negligence "grounded in the possession of [a] premises and the attendant right to control and manage the premises." (*Kesner v. Superior Court* (2016) 1¿Cal.5th 1132, 1158, quotation marks omitted.) The theory relies on a crucial premise: that the defendant in a premises liability action owns or controls the property on which a plaintiff's injury took place. (*Martin v. Gladston* (2023) 96 Cal.App.5th 681, 689 [collecting precedents]; *Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 672 ["proper test" is reasonable care in "management of [one's] property"]; *Soto v. Union Pacific Railroad Co.* (2020) 45 Cal.App.5th 168, 177.)

Here, Defendants contend Plaintiff fails to state facts sufficient to constitute negligence and premises liability because Plaintiff has not adequately alleged duty, breach, causation, or damages as to the Sharaf Trustees. (Demurrer, pp. 7-8.)

The Court is not persuaded. Accepting the Complaint's allegations as true, Plaintiff alleges the Sharaf Trustees owned, operated, maintained, supervised, managed, or otherwise controlled the subject property. (Complaint, ¶ 5.) Plaintiff further alleges he repeatedly notified Defendants of numerous dangerous conditions, including gas heater leaks creating carbon monoxide hazards, water intrusion, mold, and other defective conditions, but Defendants failed to remedy those conditions despite Plaintiff's repeated complaints and the City of Los Angeles Housing Department's Notice and Order to Comply. (Complaint, ¶¶ 15-30.) Plaintiff further alleges Defendants' failure to maintain the premises in a reasonably safe condition caused him physical and emotional injuries. (Complaint, ¶¶ 29-30, 33-40, 42-50.) Accepting these allegations as true, Plaintiff has sufficiently alleged duty, breach, causation, and damages to state claims for negligence and premises liability at the pleading stage.

Thus, the demurrer is OVERRULED as to this cause of action.

Third Cause of Action: Breach of the Implied Warranty of Habitability

The elements of an affirmative claim for breach of the implied warranty of habitability are (1) the existence of a material defective condition affecting the premises' habitability, (2) notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition, (3) the landlord was given a reasonable time to correct the deficiency, and (4) resulting damages. (*Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281, 1297.)

Defendants contend Plaintiff fails to state a claim because the Lease Agreement identifies A&B Partners, not Defendants, as the landlord, and therefore Plaintiff fails to allege the existence of a landlord-tenant relationship, or contractual duties owed by the Defendants. (Demurrer, pp. 8-10.) In opposition, Plaintiff argues the pleading is sufficient. (Opposition, pp. 10-11.)

The Court agrees with Defendants. Although, as discussed above, the Lease Agreement does not conclusively establish that the Sharaf Trustees lacked ownership or control of the subject property, the implied warranty of habitability arises from the landlord-tenant relationship. Plaintiff alleges Defendants breached that warranty by failing to inspect, maintain, repair, and remedy numerous defective conditions, including a red-tagged gas heater, water leaks, and mold. (Complaint, ¶¶ 52-53.) However, these allegations are directed collectively at "Defendants" and do not allege facts establishing that the Sharaf Trustees were Plaintiff's landlords or otherwise owed duties arising under the lease. The Complaint alleges only, in conclusory fashion, that Plaintiff leased the premises from "Defendants" and that the Trustees owned, operated, maintained, supervised, managed, or otherwise controlled the property.

Thus, the Court SUSTAINS the demurrer as to this cause of action with 20 days' leave to amend.

Fourth Cause of Action: Maintenance of Nuisance

A nuisance is "[a]nything which is injurious to health ... or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property." (Civ. Code § 3479.) Nuisance liability is not necessarily based on negligence so "one may be liable for a nuisance even in the absence of negligence." (*City of Pasadena v. Superior Court* (2014) 228 Cal.App.4th 1228, 1236.) However, where liability for the nuisance is predicated on the omission of the owner of the premises to abate it, rather than on having created it, then negligence is said to be involved. (*Ibid.*; *El Escorial Owners' Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337, 1349 ("Where negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim.").)

Defendants contend Plaintiff fails to state a nuisance claim because the Complaint does not adequately allege either a public or private nuisance and merely repackages the negligence claim. (Demurrer, pp. 11-12.) Plaintiff responds that a residential tenant may maintain a nuisance claim based on uninhabitable, health-endangering conditions. (Opposition, p.11)

The Court agrees that the fourth cause of action, as presently pleaded, is based on the same alleged omissions underlying Plaintiff's negligence claim. Plaintiff alleges Defendants created, maintained, permitted, or failed to abate the same defective conditions identified in the first cause of action, including the red-tagged gas heater, water leaks, and mold. (Complaint, ¶¶ 35-38, 64-68.) Beyond characterizing those conditions as a nuisance, Plaintiff alleges no additional facts or conduct giving rise to nuisance liability independent of the alleged failure to exercise due care. Under these circumstances, the nuisance claim is not sufficiently distinct from the negligence claim.

Thus, the Court SUSTAINS the demurrer to the fourth cause of action with 20 days' leave to amend.

Fifth Cause of Action: Breach of Quiet Enjoyment

"[E]very lease includes a covenant of quiet possession and enjoyment." (*Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281, 1299 (citing Civ. Code, § 1927).) "Minor inconveniences and annoyances are not actionable breaches of the implied covenant of quiet enjoyment." (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 589.) "To be actionable, the [landlord's] act or omission must substantially interfere with a [tenant's] right to use and enjoy the premises for the purposes contemplated by the tenancy." (*Id.*) ˆ

Defendants contend Plaintiff fails to state a claim because Plaintiff does not allege the existence of a lease or contractual relationship with the Sharaf Trustees and, in any event, Plaintiff remains in possession of the premises. (Demurrer, pp. 12–13.) Plaintiff responds that he adequately alleges substantial interference with his use and enjoyment of the premises and that abandonment is not required to maintain a claim for breach of the covenant of quiet enjoyment. (Opposition, p. 12.)

The Court agrees in part. The Court does not find Plaintiff's continued possession of the premises dispositive. However, for the reasons discussed with respect to the third cause of action, Plaintiff fails to allege facts establishing that the Sharaf Trustees were parties to the lease or otherwise owed Plaintiff contractual duties arising under the covenant of quiet enjoyment. Plaintiff alleges Defendants interfered with his quiet enjoyment by failing to remedy defective conditions, including gas leaks, water leaks, mold, and by engaging in a pattern of harassment. (Complaint, ¶¶ 71-75.) However, these allegations are directed collectively at "Defendants" and do not allege facts establishing the contractual relationship necessary to impose liability upon the moving Defendants.

Thus, the Court SUSTAINS the demurrer as to this cause of action with 20 days' leave to amend.

Sixth Cause of Action: Negligence Per Se

Negligence per se is not an independent cause of action. Rather, it is an evidentiary doctrine under which a statutory violation may give rise to a presumption of negligence where its requirements are satisfied. (*Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1285.) Accordingly, negligence per se does not create a private right of action but instead provides a means of establishing an element of an existing negligence claim. (*Ibid.*)

Defendants contend Plaintiff improperly pleads negligence per se as a separate cause of action. (Demurrer, pp. 13-14.) Plaintiff responds that although negligence per se is an evidentiary doctrine, Civil Code section 1942.4 independently authorizes recovery for certain habitability violations. (Opposition, pp. 12-13.)

The Court agrees that negligence per se is not an independent cause of action. Thus, to the extent the sixth cause of action purports to assert negligence per se as a standalone claim, it fails as a matter of law. Plaintiff's reliance on Civil Code section 1942.4 does not alter this conclusion. Although section 1942.4 may provide an independent statutory basis for relief where its elements are satisfied, Plaintiff has not asserted a separate statutory cause of action under section 1942.4. Instead, Plaintiff has pleaded only a cause of action labeled "Negligence Per Se."

Thus, the Court SUSTAINS the demurrer without leave to amend.

The Court OVERRULES the demurrer as to the First and Second Causes of Action. The Court SUSTAINS the demurrer with 20 days' leave to amend as to the Third, Fourth, Fifth Causes of action. The Court SUSTAINS without leave to amend as to the Sixth Cause of Action.

Motion to strike

Defendants move to strike the following portions of the Complaint:

Plaintiff's claims for punitive damages, including paragraph 61, paragraph 79, and Item 4 of the Prayer for Relief.

Plaintiff's claims for attorney's fees, including paragraphs 62, 80, and 91, and Item 5 of the Prayer for Relief; and

Plaintiff's claim for statutory damages under Civil Code section 1942.4, as set forth in Item 3 of the Prayer for Relief.

As a preliminary matter, the Court's ruling on Defendants' demurrer renders portions of the motion to strike moot. Specifically, because the Court sustains the demurrer to the third and fifth causes of action with leave to amend, Defendants' request to strike paragraphs 62 and 80 is denied as MOOT.

The Court therefore addresses only Defendants' requests to strike Plaintiff's claims for punitive damages, statutory damages under Civil Code section 1942.4, attorney's fees under paragraph 91 and the Prayer, and the corresponding requests for relief.

Punitive damages

Punitive damages are recoverable only where the plaintiff pleads facts showing the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) Conclusory allegations are insufficient; the complaint must allege specific facts demonstrating despicable conduct carried on with a willful and conscious disregard of the rights or safety of others. (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.)

Here, Defendants contend that Plaintiff fails to allege facts sufficient to support punitive damages against the Sharaf Trustees. (Motion, pp. 7-9.) Plaintiff disagrees, arguing that malice and oppression are adequate pleaded.

The Court agrees with Defendants. The Complaint alleges, in conclusory fashion, that Defendants acted maliciously and oppressively, but it does not allege specific facts demonstrating despicable conduct by the Sharaf Trustees sufficient to support an award of punitive damages under Civil Code section 3294. Thus, Defendants' motion to strike Plaintiff's punitive damages allegations, including paragraph 61, paragraph 79, and Item 4 of the Prayer for Relief, is GRANTED.

Statutory damages (Civil Code 1942.4)

Defendants contend Plaintiff is not entitled to statutory damages under Civil Code section 1942.4 because the Complaint fails to allege facts establishing the Sharaf Trustees violated the statute. (Motion, pp. 10-11.) Plaintiff argues the Complaint adequately alleges the statutory elements. (Opposition, p. 5.)

The Court agrees with Defendants. Although the Complaint alleges the Sharaf Trustees owned, operated, maintained, supervised, managed, or otherwise controlled the subject property (Complaint, ¶ 5), it does not allege facts establishing that the Sharaf Trustees were Plaintiff's landlords or otherwise subject to liability under Civil Code section 1942.4. As discussed in connection with the demurrer, Plaintiff has not adequately alleged the contractual or statutory relationship necessary to impose liability under section 1942.4 against the moving Defendants.

Attorney's fees

Plaintiff seeks attorney's fees pursuant to Civil Code section 1942.4, subdivision (b)(2). Because the Complaint does not adequately allege a claim under Civil Code section 1942.4 against the moving Defendants, Plaintiff has not adequately pleaded a basis for statutory attorney's fees. Thus, motion to strike as to attorney's fees is GRANTED.

Based on the foregoing, the Court DENIES AS MOOT Defendants' motion to strike paragraphs 62 and 80 of the Complaint. The Court GRANTS Defendants' motion to strike paragraph 61, paragraph 79, paragraph 91, Items 3, 4, and 5 of the Prayer for Relief.

IV. ORDER

The Court OVERRULES the demurrer as to the First and Second Causes of Action. The Court SUSTAINS the demurrer with 20 days' leave to amend as to the Third, Fourth, Fifth Causes of action. The Court SUSTAINS without leave to amend as to the Sixth Cause of Action.

The Court DENIES AS MOOT Defendants' motion to strike paragraphs 62 and 80 of the Complaint. The Court GRANTS Defendants' motion to strike paragraph 61, paragraph 79, paragraph 91, Items 3, 4, and 5 of the Prayer for Relief.

Defendants are to give notice.

Dated: July 17, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT